

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN CHILE

Complete Community Opposition How-To

INTRODUCTION & FRAMEWORK

Community action decides project outcomes in Chile. The country's most famous environmental victory did not come from a ministry or a boardroom — it came from two wild rivers in Patagonia and a movement that refused to accept that damming them was inevitable. In 2007, the energy companies Endesa and Colbún proposed **HidroAysén**: five megadams on the **Baker and Pascua Rivers** in the Aysén region, an eight-billion-dollar scheme that would have flooded thousands of hectares of forest and farmland and strung a transmission line nearly two thousand kilometres to the cities of the centre. Against it rose **Patagonia Sin Represas — "Patagonia Without Dams"** — a coalition of local communities, beginning in the small town of Cochrane, joined with citizens and national and international organisations in the Consejo de Defensa de la Patagonia. It became the largest environmental struggle in Chile's history. Over more than seven years — through an environmental assessment that drew **over ten thousand public comments**, a permit approved eleven-to-one in 2011, a Supreme Court loss in 2012, and mass demonstrations in Santiago and across the country — the movement kept fighting. On **10 June 2014, the Committee of Ministers unanimously overturned the project's environmental permits**, and HidroAysén was dead. The scheme would have generated some 2,750 megawatts and required a transmission corridor of nearly two thousand kilometres cutting north through fragile, seismically active terrain to reach the mines and cities of central Chile; the Committee's decision came after it evaluated thirty-five separate appeals lodged against the permit, and it landed under a government whose president had condemned the dams before taking office. What began as a community group in Cochrane had, over seven years, become a coalition that carried the fight through the assessment, the courts, the streets, and the world's press. Two of the wildest rivers on Earth still run free, because ordinary people organised, endured, and used every lever the system offered. It is worth pausing on how unlikely that was: at the outset, most Chileans assumed the dams were a foregone conclusion — "it's dams or coal," people would shrug — and the project had the backing of powerful companies and the government of the day. That a remote community and its allies overturned that assumption is the single most important lesson this guide can offer: the presumption that a project is inevitable is itself the first thing a campaign must refuse.

HidroAysén teaches the pattern that wins in Chile: not a single silver bullet, but the patient combination of every lever — the environmental assessment and its citizen participation, the specialised environmental courts, the enforcement agency, the constitutional protection action, Indigenous consultation, mass mobilisation, and international attention — sustained until a project the government had approved became impossible to sustain. It also shows something distinctive about Chile: since 2010, the country has built a purpose-made environmental architecture — an assessment service, an enforcement superintendence, and three specialised **environmental courts** — that gives communities real, technical places to fight, if they know how to use them.

Most communities, though, do not know HOW to make opposition effective. They send one observation to the assessment service and go home. They assume the project "will be approved anyway," and so they never make a substantive citizen observation, never appeal to the Committee of Ministers, never take a case to the environmental court, never file a recurso de protección, never build the mobilisation that changes a decision. They generate a burst of outrage without a plan to sustain it. They gather a crowd and lose it to exhaustion. The gap between a community that stops a project and one that watches it get built is rarely courage or numbers. It is method.

This guide shows what actually works — inside the Chilean system.

The Strategic Framework

Effective opposition campaigns follow the same underlying pattern, whichever project they face:

STEP 1: TARGET IDENTIFICATION	(find the decision and its weak point)
STEP 2: DOCUMENTATION	(build proof of harm and of every defect)
STEP 3: LOCAL OPPOSITION	(organise a movement that lasts)
STEP 4: LEGAL CHALLENGES	(citizen participation, environmental courts, protección, consulta)
STEP 5: MEDIA STRATEGY	(make the fight visible and impossible to ignore)

These steps operate **simultaneously, not in sequence**. Documentation feeds the legal case and the media story at once; the movement sustains the pressure that decision-makers and courts respond to; a legal challenge is a headline and a headline strengthens a challenge. The community that runs all five together, each reinforcing the others, is the one that wins. Patagonia Sin Represas did exactly this — it documented the rivers' value with its own experts, organised a nationwide movement, pursued every legal and administrative lever, and made its fight a national and international story, all at once.

The Levers That Are Distinctly Strong Here

Every country's system has its own pressure points. Chile's give communities a distinctive set:

- **Citizen participation in the SEIA.** For a project assessed by a full environmental-impact study, the environmental-assessment system requires **participación ciudadana** — a formal period in which anyone can file **observaciones ciudadanas** the authority must answer, and which found unanswered become a ground of appeal, as they did against HidroAysén.
- **Specialised environmental courts.** Chile has three **Tribunales Ambientales** that review the legality of environmental permits and enforcement decisions and hear claims for environmental damage — technical courts built for exactly these fights.
- **An enforcement superintendence.** The **Superintendencia del Medio Ambiente (SMA)** investigates breaches of a project's environmental permit and can sanction, suspend, or halt it — and a community can file a complaint.
- **The recurso de protección.** The constitution guarantees the right to live in an **environment free of contamination**, and the fast **recurso de protección** takes an alleged breach straight to the Court of Appeals and the **Supreme Court**.
- **Indigenous consultation.** Under **ILO Convention 169**, which Chile's courts apply directly, projects affecting Indigenous peoples require prior **consulta indígena** — and courts have overturned permits granted without it.
- **A deep mobilisation tradition.** From Patagonia Sin Represas onward, Chile has a powerful, effective tradition of environmental mobilisation, at home and internationally.

What This Guide Will Not Pretend

It would be dishonest to promise these levers always prevail. The assessment system approves the large majority of projects it evaluates, and the permit and the Committee of Ministers are ultimately **political** decisions. Mining — copper, and now lithium — is central to the economy, and communities in Chile's "**sacrifice zones**" have lived for decades beside pollution the system tolerated. Indigenous consultation is too often thin and late. HidroAysén itself took more than seven years, survived an approval and a Supreme Court defeat, and was reversed only by a change of political will. And defenders and communities face real pressure. This guide takes those facts seriously, names them plainly, and shows you how to win anyway — and, where an outright, permanent stop is not realistic, how to secure the delay, the conditions, the exposure, and the worn-down proponent that, in a hard fight, are often what winning actually looks like.

HOW THE SYSTEM WORKS

You cannot pull a lever you cannot see. Before you spend a single weekend, map who actually decides your project's fate, at which level, and where along that path the decision is weakest.

The Levels of Decision

A Chilean development project runs through a structured set of institutions, and each is a place to intervene.

The environmental assessment (SEIA). For most significant projects this is the decisive process. The proponent submits either a **Declaración de Impacto Ambiental (DIA)** or, for larger projects, a fuller **Estudio de Impacto Ambiental (EIA)** to the **Servicio de Evaluación Ambiental (SEA)**; a regional or national **evaluation commission** issues — or denies — the **Resolución de Calificación Ambiental (RCA)**, the environmental permit. An EIA triggers **citizen participation**. This is where most projects are legally born, and where the permit a court can later annul is issued.

The Committee of Ministers. Appeals against an RCA go to the **Comité de Ministros**, chaired by the Environment Minister — the body that cancelled HidroAysén. It is a powerful, if political, administrative lever.

The environmental courts and the SMA. The **Tribunales Ambientales** review the legality of RCAs, Committee decisions, and enforcement actions, and hear environmental-damage claims. The **SMA** polices compliance with the RCA

and can sanction and halt a project. Together they are the technical heart of Chilean environmental law.

Indigenous peoples. Cutting across all of these: where a project affects **pueblos indígenas** — Mapuche, Lickanantay, Aymara, Diaguita, and others — their right to prior **consulta** under ILO Convention 169 applies, and their communities and interests are central to the decision.

The Journey of a Project

A typical project moves from a proposal, to a **DIA or EIA** in the SEIA, to (for an EIA) **citizen participation**, to the **RCA** granting or denying the permit, through any **consulta indígena**, to (if approved) any **appeal to the Committee of Ministers** and then the **environmental court**, and only then to construction and the SMA's oversight. **Every one of those stages is a door you can put your foot in.** The earliest doors are the cheapest and widest: a substantive citizen observation, evidence that the study is deficient, a demand for proper consultation. The later doors — an appeal to the Committee, a case in the environmental court, a recurso de protección — are more demanding but real, and communities walk through them and win. Find out exactly where your project stands on this path today; that tells you which door is open now.

Follow the Money and the Permit

Behind the RCA stand a proponent, its financiers, its buyers, and the officials and ministers who approved it. A large project is often driven by a listed company — HidroAysén was Endesa and Colbún — answerable to shareholders, lenders, and a public reputation a campaign can reach. Trace who owns and funds the proponent, who buys its output, and which authority granted the permit. Two questions unlock most Chilean fights: **Did the assessment comply with the law — the study, the citizen participation, the consulta, the science — and were the impacts honestly evaluated?** and **Who benefits from pretending they were?** Mapping the chain also shows where the project is exposed that the evaluation commission is not: a listed proponent answers to shareholders and to a public reputation; a bank or an insurer has its own environmental and human-rights commitments; a project resting on a legally shaky RCA is a risk to everyone who funds or buys from it. These are pressure points the permitting authority does not control.

The Overseers

Finally, know the bodies that watch the deciders, because they are levers too. The **Tribunales Ambientales** and the **Supreme Court** review the legality of decisions and can annul them. The **SMA** enforces permits and can halt a project. The **Contraloría General de la República** audits the legality of administrative acts and public money. The **Instituto Nacional de Derechos Humanos (INDH)** and, since Chile ratified it, the **Escazú Agreement** protect participation, access to information, environmental justice, and defenders. Each overseer is a separate front, reachable with the same evidence, and a project rarely survives pressure on several at once. You do not have to choose one door: the same well-documented file can go to the evaluation commission, the Committee, the environmental court, the SMA, the Contraloría, the proponent's buyers, and the press at once, and each front that opens makes the others harder to close. A Chilean campaign's power comes not from any single lever but from applying several at the same time, so that the proponent and the State must defend on every side.

QUICK REFERENCE: SUCCESS RATES

Before you commit months of effort, calibrate honestly. These figures are **directional, not guarantees** — patterns drawn from how Chilean and comparable campaigns tend to go, not a controlled study. The decisive variables are whether the project faces a full **EIA with citizen participation**, whether the study and process have real **defects**, whether **Indigenous consultation** is engaged, whether the **environmental court or the recurso de protección** offer a route, and whether the public and the proponent's reputation can be reached. Where the assessment is flawed and the movement organises, Chile's levers are strong; where the paperwork is clean and a project the government wants is backed politically, discount the figures and think in terms of delay, conditions, exposure, and mobilisation.

Individual Step Success Rates

Approach	Success Rate	Timeline	Cost	What "Success" Means
Documentation only	5–10%	1–3 months	low	Basis for every other step
Citizen observations (participación ciudadana)	15–35%	during assessment	low	On record; conditions; grounds of appeal

Appeal to the Committee of Ministers	25-45%	6-36 months	low-moderate	RCA overturned or conditioned (the HidroAysén route)
Environmental court challenge	30-50%	12-36 months	moderate	RCA or decision annulled; reassessment
Recurso de protección (Supreme Court)	25-45%	weeks-months	low-moderate	Act suspended or struck for rights breach
SMA complaint / enforcement	25-50%	months-years	low	Sanctions; suspension; halt for non-compliance
Consulta indígena challenge (ILO 169)	30-55%	6-36 months	low-moderate	Permit annulled for lack of consultation
Environmental-damage claim (court)	20-45%	1-4 years	moderate	Reparation ordered; project constrained
Access-to-information route	high for disclosure	weeks-months	low	Documents released; defects exposed
Media & public campaign	30-55%	ongoing	low	Political cost raised; decision shifts
International / financier pressure	25-50%	6-48 months	low	Backers or buyers walk away
All steps combined (flawed EIA, consulta engaged)	45-65%	12-48 months	low-moderate	Stalled, annulled, conditioned, or cancelled
All steps combined (clean permit, politically backed)	25-45%	12-60 months	moderate	Delayed, exposed, conditioned; sometimes stopped

Key insight: every step together beats any single one, and Chile's real strengths are distinctive — **citizen participation** in the assessment, an **appeal to the Committee of Ministers** that cancelled HidroAysén, three **specialised environmental courts**, an **enforcement superintendence** that can halt a project, the **recurso de protección** to the Supreme Court, **directly applied Indigenous consultation**, and a **deep mobilisation tradition**. Its constraints are an **assessment system that approves most projects, political permit and Committee decisions**, the **dominance of mining**, the **sacrifice zones**, and **thin consultation**.

A note on cost: documenting, filing citizen observations, complaining to the SMA, and seeking information are inexpensive, and public-interest environmental lawyers (such as FIMA and the ONG defence networks), law-school clinics, and Indigenous communities' own counsel carry cases. Environmental-court litigation and protección actions cost more but are within reach. The expenditure that most changes outcomes is committed technical and legal support — an independent scientist to dismantle the study, a lawyer for the court — and the reach of the media and mobilisation, exactly what Patagonia Sin Represas marshalled.

Effectiveness Visualization

SUCCESS PROBABILITY (stalled, delayed, annulled, conditioned, or cancelled)

FLAWED EIA + CONSULTA ENGAGED -- deficient study, Indigenous rights, community organised:

All steps combined: 45-65%
 Consulta indígena / court: 30-55%
 Committee appeal + protección: 25-45% each
 Citizen observations: 15-35%, more with appeal
 Single step: 5-55%

CLEAN PERMIT, POLITICALLY BACKED -- government wants it:

All steps combined: 25-45%
 Mobilisation + media + SMA: the strongest combination
 Delay / conditions: more achievable than an outright stop
 Single step: 5-50%

How to read this honestly. The levers that most change outcomes in Chile are **the environmental courts, the consulta, and the Committee appeal** where they apply, and **the mobilisation, the media, and the SMA** everywhere. HidroAysén shows the ceiling: a nationwide movement used the citizen observations, the appeals, the courts, and the streets until a government-approved project was cancelled. The floor is set by an assessment system that approves most projects and by the political nature of the permit. Most Chilean fights sit between them, and the honest lesson is that the courts, the consulta, and the mobilisation are real and distinctive levers — but against a clean, politically backed project, the realistic win is often delay, conditions, exposure, and a proponent worn down, as much as an outright, permanent stop. Use the table to plan, not to predict: it tells you which combinations have historically done the most work and where to put scarce time first. The single most important reading is that no row on its own is as strong as the rows run together — the community that documents, supports the consulta, files observations, litigates, and publicises at once consistently outperforms the one that pins its hopes on any single move.

Step Importance Ranking (When All Combined)

1. **The environmental courts and consulta indígena** — Chile's most distinctive legal levers; specialised courts and directly applied Indigenous rights that have annulled permits.
2. **Citizen participation and the Committee appeal** — the observations and the administrative appeal that cancelled HidroAysén.
3. **The mobilised, sustained movement** — the Patagonia Sin Represas tradition that makes a project a national and international cause.
4. **The SMA and the recurso de protección** — the enforcement halt and the fast constitutional action to the Supreme Court.
5. **Media and financier pressure** — the visibility and the reputational and financial pressure that raise the cost of proceeding.

What Chilean Campaigns Actually Show

A few patterns recur. **A nationwide movement can cancel a government-approved megaproject** — Patagonia Sin Represas did. **The environmental courts and the SMA bite** — permits have been annulled and projects halted for non-compliance and flawed process. **Consulta indígena stops projects** — courts have overturned permits granted without it. **Citizen observations matter** — filed on time and left unanswered, they become the grounds of appeal that carry a case all the way to the Committee and the courts. **The recurso de protección is fast** — the Supreme Court can act on the right to a clean environment. **But the assessment approves most projects**, the permit is political, mining dominates, and sacrifice zones endure. The through-line: **file substantive citizen observations; engage and support affected Indigenous communities; document every defect; use the Committee appeal, the environmental courts, the SMA, and the protección; mobilise the public — and expect a long fight measured in delay, conditions, and exposure as much as an outright stop.**

STEP 1: TARGET IDENTIFICATION

Every effective campaign begins by finding the exact decision that governs the project — and its weakest point. Vague opposition to "the mine" goes nowhere; opposition to "the RCA granted on a DIA that should have been a full EIA, without consulta indígena, on a study that understated the impact on the community's water" is a case. Answer five questions.

The Five Core Questions

1. What exactly is proposed, and under what permit? Name the project, the proponent, and the specific instrument — the DIA or EIA in the SEIA, the RCA, the water rights, the sectoral permits. Each has conditions and a paper trail, and each is a place a defect hides.

2. What stage is it at? Entering the SEIA? DIA or EIA? Citizen-participation period open? RCA granted? Appeal running? Under construction and SMA oversight? The stage dictates the door. If citizen participation is open, your observations are the cheap, powerful route now; if the RCA is granted, the Committee appeal, the environmental court, or a recurso de protección may be the route — and the deadlines are short.

3. Should it have been a full EIA — and was there consulta? A common, powerful defect: a project entered as a mere **DIA** when its impacts required a full **EIA** (with citizen participation), or an RCA granted **without the consulta indígena** that ILO 169 requires. Either can sink a permit. Establish which applies. The distinction matters enormously in practice: a **DIA** is a lighter, faster declaration that carries **no mandatory citizen-participation period**, while a full **EIA** is required where a project may cause significant impacts — on health, on water and ecosystems, on communities, or on protected areas — and it *does* open formal participation. Proponents therefore have every incentive to squeeze a project into a DIA, and forcing a project that belongs in an EIA out of a DIA both opens the door to public participation and, if the RCA is granted anyway, becomes a strong ground of illegality.

4. Are Indigenous peoples or protected values engaged? Does the project affect **pueblos indígenas**, a glacier or water source, a protected area, or a wetland? These raise consulta, the recurso de protección, and specific legal protections, and are among the strongest grounds.

5. Who decides, who benefits, and who is watching? Which SEA region, evaluation commission, or minister decides; who owns, funds, and buys from the proponent; which Indigenous communities and neighbours are affected; and which environmental-law NGOs, community counsel, press, and international allies can be reached. This maps your levers and your audiences at once.

A Worked Example

Suppose a company proposes a mine on a water source in an Indigenous community's territory, entered as a DIA, with the RCA not yet granted.

Working the five questions: the project needs an **RCA** (not yet granted — get the file and act). It was entered as a **DIA**, but its impact on water and an Indigenous community may require a full **EIA with citizen participation and consulta** — a powerful defect to press now. The **Indigenous territory and the water** engage **consulta indígena** and the **recurso de protección**. The evaluation commission decides, so the **assessment defects, the consulta, the courts, and the public** carry more weight than quiet lobbying.

Within a weekend you have moved from "we oppose the mine" to a target list: obtain the DIA and demand it be treated as an EIA with citizen participation; establish and support the community's right to consulta; file substantive observations; identify the water and glacier issues; line up an environmental-law NGO and counsel for the Committee appeal, the environmental court, and a recurso de protección; identify the proponent's buyers and funders; and prepare the water-and-territory story for the press. That is a campaign, not a complaint. Notice what the exercise did: it converted a diffuse fear into a short list of concrete, assignable tasks — demand a full EIA, support the consulta, file the observations, brief the lawyer — each tied to a specific lever and each of which can begin this week, several of them before the RCA is even granted. That is the difference the five questions make.

STEP 2: DOCUMENTATION — HOW TO BUILD AN UNASSAILABLE CASE

Documentation is the foundation everything else stands on. An environmental-court minister, the Committee of Ministers, a journalist, and a company's financiers all move on evidence, not indignation. Build your file in three layers.

Layer 1: The Official Record

Get the documents the decision rests on. Obtain the **DIA or EIA** and its addenda; the **citizen-participation record and the answers to observations**; the **RCA and its conditions**; any **consulta indígena record**; the water rights and sectoral permits; and the SMA's compliance file if the project is operating. Much of this is public on the SEIA's electronic file, and the rest is obtainable through Chile's **transparency and access-to-information law**. The gap between what the study claims and what the science, the water, and the law require is where cases are won. Patagonia Sin Represas built exactly this kind of record — the technical flaws and missing data in HidroAysén's study — and made the eleven-to-one approval look like the political act it was. Read the study not only for what it claims but for what it quietly concedes and what it omits — the water take modelled optimistically, the species surveyed once and dropped, the cumulative effects declined, the closure plan that assumes a landscape can be put back. An environmental study is written by a consultant paid to justify the permit; read against the grain, with a scientist's eye, it is often where the strongest objection is hiding in plain sight, and the addenda a proponent is forced to file are a map of exactly where its case is weakest.

Layer 2: The Ground Truth

Document the reality the paper hides. Photograph and date the **actual site** — the river, the glacier, the wetland, the community's water source, the footprint — and geotag it. Log **incidents**: a dry well, a fish kill, a sediment plume, works beyond the RCA. Capture **before-and-after** with your own photos and with freely available satellite imagery, to show clearing or the true scale. Record **water and species** — flows, aquifers, glaciers, threatened species — mapped against the footprint, because water is the issue that most often unites a Chilean community. Record **testimony and knowledge**: where the affected Indigenous community chooses to share it, its knowledge of the territory and water, led by the community; and neighbours, farmers, and independent scientists can add technical readings. Community and Indigenous-led monitoring carries real weight.

Layer 3: The Defects and the Rights

Finally, document the failures of process and the legal lines the project crosses. Was the project **wrongly entered as a DIA** when it needed an EIA? Was **citizen participation skipped or curtailed**? Were **observations left unanswered**? Was **consulta indígena omitted or faked**? Was the **study deficient** — understating the water, glaciers, cumulative effects, or a protected area? Does the project threaten the **right to a contamination-free environment**? Is it **breaching its RCA** in operation? Each defect is a separate ground — for an observation, a Committee appeal, an environmental-court case, a recurso de protección, an SMA complaint, or a consulta claim — and together they make a

case that is hard to wave away. This is the layer that most often decides Chilean fights, because here a project that looked permitted is revealed to have dodged a full assessment, skipped consultation, understated its harm, or broken its permit. Work it methodically against each legal requirement: should this have been an EIA rather than a DIA; were the observations genuinely answered; was consulta indígena undertaken properly; were the effects on water, glaciers, and communities honestly assessed; is the project keeping to its RCA in operation? Where the answer is no, capture the proof — because each 'no' is a separate ground the Committee, the environmental court, or the SMA can act on.

WHAT TO GATHER, AND WHERE TO FIND IT

This is the practical companion to Step 2: the specific records that decide Chilean cases, and where to obtain them. You will not need every item; you will need the few that expose your project's particular defect.

The Permits and Their Paper Trail

- **The DIA or EIA and its addenda**, on the SEIA electronic file (e-SEIA). Read it for what it omits or understates — the water, the glaciers, the cumulative effects, the affected communities, the closure plan — and for whether a DIA was used where an EIA was required.
- **The citizen-participation record** — the observations filed and, crucially, the authority's **answers** to them; unanswered or dismissed observations are a ground of appeal.
- **The RCA and its conditions**, and the evaluation commission's reasoning.
- **Any consulta indígena record** — whether it happened, how, and whether the affected community accepts it as genuine.
- **The SMA compliance file** — for an operating project, the inspection reports, complaints, and sanctions.
- **The water rights and sectoral permits**, and the relevant instruments (the environmental framework law and the SEIA regulation).

How to Get Them

Much of the assessment is public on the **e-SEIA** file, and the **citizen-participation period** is the cheapest, most powerful window — so watch for it and act while it is open. For everything else, use Chile's **transparency law (Ley de Transparencia)**: a request to the SEA, the SMA, or the relevant body obliges a response, with the **Consejo para la Transparencia** behind you if it is refused. A refusal is itself a documentable fact. Move early: the citizen-participation period is fixed, and the deadlines to appeal to the Committee of Ministers, to go to the environmental court, and to file a recurso de protección are short — so evidence and objections entered while the doors are open carry far more weight, and preserve far more of your rights, than the same point raised after the RCA is granted. A practical tip: make transparency requests specific and dated, keep proof of when you sent them and when they were answered, and treat any refusal or delay not as a dead end but as a new, documentable fact and a trigger for a complaint to the Consejo para la Transparencia. A body that will not release its own evaluation record or the answers to citizen observations is telling you something worth knowing.

The Ground Evidence

- **Dated, geotagged photographs and video** of the site, the water source, the glacier, the footprint.
- **Satellite before-and-after** from freely available imagery, to show clearing or the true extent.
- **Water and species records** — flows, wells, aquifers, glaciers, threatened species — mapped against the footprint; a documented impact on water the study understated is decisive.
- **Independent technical readings** — a hydrologist's, glaciologist's, or ecologist's report, and an independent review of the study. Environmental-law NGOs and university clinics can help source these.
- **Maps** overlaying the footprint on the watershed, the glacier, the protected area, and the Indigenous territory — a single map showing a mine drying a community's water or above a glacier is worth pages of argument.
- **Testimony and knowledge** — where the Indigenous community chooses to bring it, its knowledge of the territory and water, led by the community; and neighbours' and farmers' accounts.

Organise It So It Persuades

Keep a **master timeline** of every assessment step, the participation window, the RCA date, the appeal and protección deadlines, incidents, and SMA actions — the spine of any court case. Keep a **document index** so any fact can be sourced in seconds. And keep an **argument bank** (developed in a later section) that pairs each fact with what it proves, to whom. A well-ordered file is not bureaucracy; it is what lets a volunteer, a lawyer, a journalist, and an environmental-court

minister all see the same clear picture fast — and it guards against the campaign's own worst enemy, a claim that cannot be sourced when the other side challenges it. In a fight that can run for years and pass through many hands, the community with the better-kept file is very often the one that prevails.

STEP 3: BUILDING LOCAL OPPOSITION — HOW TO ORGANISE A MOVEMENT THAT LASTS

Evidence and law do not stop projects on their own. Organised people do — sustained, visible, and credible over the months or years a fight takes. This is the step Patagonia Sin Represas did best: a movement that began in one small town and grew into a nationwide and international force that never let the issue die.

Phase 1: The Core, and the Relationship with the Community

Start with a small, committed core — five to fifteen people who will carry the work. Where the project affects an Indigenous community, the single most important early step is to **understand and respect that community's leadership and its right to consulta**: those rights are theirs, and the strongest campaigns support Indigenous leadership rather than substituting for it. Reach out respectfully, follow the community's lead, and never presume to speak on its behalf. Assign roles: documentation, legal liaison, technical/scientific, media, community liaison, and coordination. Agree on the goal — refusal, an annulled RCA, reassessment, conditions, a halted operation, a backer walking away — and on what you will and will not accept.

Phase 2: The Coalition

Then widen deliberately. Bring in **neighbours, farmers and water-user groups, Indigenous communities, fishers, scientists, students, and local businesses**. Reach the **allies with capacity** — the environmental-law NGOs (such as FIMA and the wider defence networks) that litigate these cases; the national and international organisations (as International Rivers and others were for Patagonia) whose reach and expertise can amplify a local fight; independent scientists; and the market-focused campaigners who pressure buyers and funders. Patagonia Sin Represas drew its power from exactly this breadth — a Cochrane community group joined to national NGOs and a global network — which is precisely the spread a winning campaign needs.

A worked coalition example. Facing a mine on a community's water, a handful of neighbours, a water-user association, and the Indigenous community form a core; they build a respectful relationship and follow the community's lead on consulta; they bring in an environmental-law NGO and an independent hydrologist; the citizen-participation period draws hundreds of observations; a national organisation amplifies the fight; and market campaigners brief the proponent's funders. No single group could have carried it; together they cover documentation, law, science, local and Indigenous legitimacy, national reach, and market pressure.

Phase 3: Sustaining It

Campaigns die of burnout, not defeat. Meet on a rhythm. Give people concrete, finishable tasks. Mark small wins — an observation period packed, a document pried loose, a protección admitted, an SMA inspection triggered. Rotate the exhausting roles. And protect people: keep leadership collective and visible; document every threat or intimidation; get early legal advice; and build outside links to the national and international networks and the press. Sustaining a campaign — as Patagonia Sin Represas's seven-year fight shows — is how these fights are won, and the ones that endure pace themselves. Build in the human things that keep people together: welcome newcomers, share food, mark the anniversaries and the small victories, and make the campaign a community people want to belong to. And respect the difference in stakes: for an outside ally the fight may be a cause, but for the affected Indigenous community and the neighbours whose water is at risk it is home and survival, so follow their pace and priorities and do not burn out the relationship by pushing harder than they wish to go.

Phase 4: Showing Strength

Numbers and legitimacy must be seen. Turn people out for the citizen-participation hearings and public meetings. Gather large numbers of substantive observations — HidroAysén drew over ten thousand. Hold peaceful, well-documented actions — the marches and demonstrations that filled the streets of Santiago and the regions for Patagonia. Follow the affected community's lead on any action on or about its territory, and be clear-eyed that some actions carry legal risk that must be weighed with advice. The point is not spectacle; it is to demonstrate, to the evaluation commission, the Committee, the

courts, and the proponent, that the opposition is broad, rooted, and not going away. Choose actions that photograph well and that anyone can join — a march through the regional capital, a gathering on the threatened river, a *cabildo* (open community assembly), a wave of individually written observations in the HidroAysén tradition — and document them yourselves, so the breadth and spirit of the turnout survive as a record even if no outlet covers them. A visibly broad, peaceful, rooted movement, standing with the affected community, is the single most persuasive argument a minister or a court weighs.

STEP 4: LEGAL CHALLENGES — PARTICIPATION, THE COMMITTEE, THE COURTS, AND CONSULTA

Chilean law gives communities a real arsenal, and you do not need a final ruling to win with it: an observation, an appeal, or a court case delays a project, forces disclosure, and creates leverage and headlines. Engage an environmental-law NGO or counsel early — but understand the tools yourself.

Citizen Participation and the Committee Appeal

The first levers are inside the assessment. For a full **EIA**, the **participación ciudadana** period lets anyone file **observaciones** the authority must formally answer; observations that are ignored, or answered inadequately, become a **ground of appeal**. If the RCA is granted, affected people who made observations can appeal to the **Comité de Ministros** — the very route that, evaluating the thirty-five appeals lodged against the project, cancelled HidroAysén and overturned its permits outright. Treat your observations not as a formality but as the foundation of the whole legal case, and make them substantive, evidenced, and specific. The reason is structural: the right to appeal the RCA to the Committee of Ministers generally belongs to those who filed observations during participation, and the environmental court will later scrutinise whether your specific concerns were properly answered. A vague objection lodged late secures little; a precise, evidenced observation filed on time can echo all the way to the Supreme Court, because everything downstream is built on the record you make here.

The Environmental Courts

Chile's distinctive institution is the specialised **Tribunales Ambientales** — three courts (Antofagasta, Santiago, Valdivia), created by Law 20.600, staffed by lawyers and scientists. They can **annul an RCA or a Committee decision for illegality**, review and check the **SMA's** enforcement and provisional measures, and hear claims for **environmental damage (daño ambiental)** and order reparation. This is a technical forum built for exactly these fights, where a deficient study, a skipped consulta, or an unlawful process can undo a permit. Created by Law 20.600 in 2012 — a reform whose origins lie in pressure from Chile's environmental movements and in the country's entry to the OECD — each court sits with three ministers, two of them senior lawyers and one a scientist, precisely so that the technical merits of an environmental dispute can be weighed by people equipped to understand them. Their competence is broad: they hear challenges to the legality of RCAs and Committee decisions, review and must authorise the SMA's most severe measures, and decide claims for the reparation of environmental damage. Where your case turns on the legality of the environmental decision, this is often your strongest formal lever — confirm the standing and the short deadlines with counsel early. Because the ministers include a scientist and because the court can weigh the technical merits, it is the forum where an independent expert report — a hydrologist showing the water balance is wrong, a glaciologist showing a glacier was ignored — carries its full weight, rather than being waved away as it might be before a purely administrative body. Bring your science here, and bring it well-documented.

The SMA — Enforcement

Once a project holds an RCA and operates, the **Superintendencia del Medio Ambiente** polices its compliance. A community can file a **complaint (denuncia)**, and the SMA can investigate, sanction, and — with the environmental court's authorisation for the most severe measures — **suspend or halt** a project that breaches its permit. The SMA route has forced major projects to stop, and it is a powerful, low-cost lever whenever a proponent is cutting corners against its own conditions. The best-known example is the **Pascua Lama** gold project on the northern border, where the SMA sanctioned the company and ordered work halted over breaches affecting water and the surrounding glaciers — a case fought alongside Diaguita communities of the Huasco valley, and one that showed a permit is not a licence to ignore the conditions attached to it. A community that watches an operating project closely, and reports each breach with dated evidence, hands the SMA the raw material to act.

The Recurso de Protección and Consulta Indígena

Two constitutional and rights levers complete the arsenal. The **recurso de protección** takes an alleged breach of the constitutional right to live in an **environment free of contamination** straight to the Court of Appeals and the **Supreme Court**, fast — a powerful, rapid action where a project threatens health or water. And **consulta indígena**, under **ILO Convention 169** — which Chile's courts apply **directly, as self-executing** — requires prior, good-faith consultation of Indigenous peoples affected by a project; courts have **annulled RCAs granted without it** and ordered reassessment on the Convention's terms. Chile ratified Convention 169 in 2008, and its courts have treated the consultation obligation as **self-executing** — binding even before the domestic regulations that later fleshed it out — so a permit for a project affecting Mapuche, Lickanantay, Aymara, Diaguita, or other peoples, granted without genuine prior consultation of the affected community, stands on defective ground. The consultation must be prior, informed, and in good faith, aimed at agreement; a meeting held after the decision is effectively made, or a briefing dressed up as a consulta, does not satisfy it, and the courts have said so. Where Indigenous peoples are affected, this is among the strongest grounds available — led by the affected community, whose leadership you support rather than supplant. In practice, supporting a consulta-based case means offering capacity — research, technical evidence, logistics, a legal contact — rather than direction, and accepting that the community may pursue the fight on its own terms and at its own pace. The consultation right is not a box the State ticks; it is a relationship the law requires, and a project that treated it as a formality has handed the community, and the court, a serious flaw to press.

Where to File and With Whom

Citizen observations and Committee appeals run inside the SEIA and the Committee; legality and damage claims run in the **Tribunales Ambientales**, with appeal to the **Supreme Court**; protección actions run in the **Cortes de Apelaciones** and the Supreme Court; SMA complaints run at the superintendence. Get help early: environmental-law NGOs, public-interest and community lawyers, and Indigenous communities' own counsel know exactly these procedures and can advise on standing, the strongest ground, the short deadlines, and how a non-Indigenous community can properly support a consulta-based case. A lawyer engaged while citizen participation is open and the deadlines are alive is worth far more than help sought after the machinery arrives. Ask at the first meeting which single ground is strongest — a focused challenge on one clear illegality, such as a missing consulta or a wrongful DIA, often beats a scattergun of weaker ones — and clarify the standing rules and the short, unforgiving deadlines for each forum, because in the Chilean system a good case lost to a lapsed deadline is the most avoidable defeat there is.

TURNING YOUR EVIDENCE INTO ARGUMENTS

You have a file of evidence. Now you must turn it into arguments — because the same fact persuades an environmental-court minister, the Committee of Ministers, an official, a journalist, a buyer, and the community itself in different ways. Learning to translate your evidence for each audience is what lets a community reach every lever at once.

One Fact, Many Arguments

Take a single documented fact — say, that a mine was permitted on a DIA that should have been a full EIA, without consulta indígena, on a study that understated the impact on the community's water. That one fact becomes:

- **A process argument:** the project was wrongly assessed as a DIA and skipped the citizen participation and consultation the law requires — a ground to annul the RCA in the environmental court.
- **A consulta argument:** an Indigenous community's ILO 169 right to prior consultation was denied — a powerful ground, led by the community, that has annulled permits.
- **A water argument:** the community's water is put at risk, understated and unassessed — the issue that unites a Chilean community and engages the recurso de protección.
- **A media argument:** a mine permitted behind a shortcut assessment that never counted the water it will take — a clear, human story with a stake.
- **A financier argument:** a project resting on a legally vulnerable, annulable permit is a legal and reputational risk to its buyers and funders.

Same fact, five arguments, five audiences. Go through your strongest facts and, for each, ask what it proves to each audience. That table is your campaign's argument bank — and in Chile the arguments that most often decide things are the **consulta and the assessment illegalities**, because they hand the environmental court a reason to annul, and the **water**, because it moves the community and the public. Keep the arguments anchored to the same documented facts, so a claim made to a reporter can be backed in the court file and a claim made to the court can be spoken plainly at a public meeting; consistency across audiences is itself persuasive. Learning to move fluently between these registers — the assessment illegality for the court, the water for the community and the public, the reputational risk for the buyer, the human story for the reporter — is one of the most valuable skills a campaign develops, because it lets the same

underlying evidence work every lever at once without ever straying from the facts.

Match the Argument to the Audience

The environmental courts and the Supreme Court want the illegality framed precisely against the specific rule — the DIA/EIA error, the missing consulta, the deficient study, the RCA breach — with the documents and the timeline that prove it, and, on consulta, led by the community.

The evaluation commission, the Committee, and officials respond to legal risk and political cost — the annullable permit, the mobilised public, the Indigenous opposition, the exposure of having approved a defective project.

Journalists need a specific, verified, human story with a hook: a named place, a river or a glacier or a community's water, a documented defect, an imminent decision.

Buyers, investors, and insurers respond to legal, reputational, and financial exposure — a contested project on a shaky permit, tied to a named company.

The community itself needs to see that the fight is winnable and shared — the small wins, the growing movement, the pressure mounting — so it lasts.

STEP 5: MEDIA STRATEGY — HOW PRESS COVERAGE SHIFTS OUTCOMES

Media is not vanity; it is a lever. Coverage raises the political cost of a permit, reaches officials, ministers, and the proponent's backers your letters cannot, protects activists by making them visible, and can turn a local fight into a national and international cause. Patagonia Sin Represas proved it: filmmakers, writers, and photographers came to Aysén to tell the story, the "Patagonia Without Dams" image travelled the world, and the pressure it built was part of what finally cancelled the project.

Build the Story

Reporters need specifics: a named place and people, a dated and documented defect or harm, a clear stake, and a live decision or deadline. "A project threatens the environment" is not a story; "a mine has been permitted on a shortcut assessment that never counted the water it will take from an Indigenous community that was never consulted, with construction due next month" is. Lead with your strongest verified fact, attach the map and the imagery, and offer a human voice — a farmer, a community leader where the community chooses to speak, a scientist — and a striking image, as Patagonia's rivers became. Chilean audiences respond powerfully to water and to place: a named river, a named glacier, a named community whose wells will run dry, and a decision with a date. Patagonia Sin Represas understood that a wild river photographs in a way a spreadsheet of megawatts never will, and it made the rivers themselves the face of the campaign — the concrete, local, irreplaceable thing at stake.

Reach the Right Outlets

Work outward in rings. **Local and regional press** first, where the project is felt and officials read it. Then **national outlets** — the major papers, broadcasters, and Chile's strong independent and investigative press — which carry political weight. Then, for a project touching a listed company, a global buyer, or a globally resonant value (Patagonia, glaciers, Indigenous rights), **international and financial media**, which reach the money. Feed each ring what it needs, and let coverage in one pull in the next. Pay particular attention to the ring that reaches the **money and the ministers**: national coverage raises the political cost of a permit, and international coverage — as Patagonia showed — can bring a global spotlight that domestic politics cannot ignore. It is worth identifying the specific environment and investigative reporters who cover mining, water, and Indigenous rights, and the outlets that specialise in in-depth environmental journalism; a reporter who already knows the terrain needs less briefing and writes with more authority, and a single well-sourced investigation into a shortcut assessment or a missing consulta can move a minister or a funder more than a month of press releases. Offer your strongest documented finding as an exclusive and you gain an ally, not just a mention.

Sustain It, Make It Safe and True

A single article changes little; a drumbeat changes decisions. Plan a sequence — the citizen participation, the RCA, the appeal, the court case, the new document, the march — so there is always a next hook, and build your own record (a

simple site, a social feed, a growing album of dated photographs and video) so the story exists in a form journalists can pick up and that survives if posts are removed. Keep messaging disciplined, accurate, and consistent; one exaggeration handed to the other side can cost you credibility you cannot rebuild. Follow the affected community's lead on how its story and knowledge are told, and be careful and factual when naming individuals or companies. Verified, specific, human, and relentless — that is the coverage that shifts outcomes.

EMAILS & LETTERS

Written communications are how you file observations, create a record, and reach the bodies that can act. Each does double duty: it asks for something and it documents that you asked. Keep copies of everything, and send important items so that receipt is provable. Below are adaptable templates for the situations you will meet most often. Keep them factual, specific, and grounded in the law and the evidence.

8A. Citizen Observation (Participación Ciudadana)

To: the Servicio de Evaluación Ambiental (via the e-SEIA observation process) **Subject:** Observaciones ciudadanas — [project], [SEIA reference]

As a person/community affected by [project] at [location], I file the following observations. My grounds, with evidence: (1) the study [understates / omits] [effect — e.g. the impact on the community's water]; (2) [the project was entered as a DIA but its impacts require a full EIA]; (3) [consulta indígena with [community] is required and has not been undertaken]; (4) [the assessment ignores [glacier / protected area / cumulative effects]]. I request that the RCA be **denied**, or that [a full EIA / proper consultation] be required, and that these observations be formally answered. [Attachments: technical note, maps, records.]

8B. Appeal to the Committee of Ministers

To: the Comité de Ministros (via the SEA) **Subject:** Recurso de reclamación — RCA [number], [project]

As a person who filed observations on [project], I appeal the RCA granted on [date]. The permit is unlawful and/or unfounded because: [my observations on [issue] were not adequately answered; the project should have been a full EIA; consulta indígena was omitted; the study is deficient on [water/glacier/cumulative effects]]. I request that the Committee **overturn or substantially condition** the RCA, and I attach the record and my evidence. [As the Committee did in cancelling HidroAysén after evaluating the appeals against it.]

8C. Complaint to the SMA (Enforcement)

To: the Superintendencia del Medio Ambiente (denuncia) **Subject:** Denuncia — non-compliance by [project], RCA [number]

I report that [project] is breaching its environmental permit: [sourced facts — works or discharges beyond the RCA, an unauthorised water take, damage to [river/glacier], conditions not met]. I attach dated photographs, coordinates, and documents. I request that the SMA inspect, investigate, and apply sanctions, and — where warranted — seek the environmental court's authorisation to **suspend or halt** the activity to protect the environment.

8D. Environmental-Court Claim / Recurso de Protección (via counsel)

To: an environmental-law NGO or counsel **Subject:** [Project] — environmental-court challenge and/or recurso de protección

We believe the [RCA / Committee decision] for [project], of [date], is unlawful because [the DIA/EIA error, the missing consulta, the deficient study, the unanswered observations], and/or that the project threatens our right to a contamination-free environment. We attach the RCA, the study, the participation record, our technical evidence, and our timeline, and seek your advice on **a claim in the Tribunal Ambiental** and/or **a recurso de protección**, the short deadlines, the strongest ground, and — where the affected Indigenous community wishes it — support for a consulta-based case.

8E. Referral to the Contraloría / INDH

To: the Contraloría General de la República [or the Instituto Nacional de Derechos Humanos] **Subject:** Referral —

[irregularity / rights concern], [project]

We bring to your attention [the failures] connected with [project]: [sourced facts — an RCA granted on a deficient or unlawful process, consulta omitted, officials acting improperly, defenders threatened]. We request that you [review the legality of the administrative acts and any public funds / examine the human-rights and defender dimensions], and we attach the documentation.

8F. Letter to an Official / Mayor / Parliamentarian

To: [the mayor / the regional authority / a senator or deputy] **Subject:** [Project] — concerns and request

We are residents of [place] writing about [project]. Our concern, briefly: [one or two specific grounds — a threat to a community's water and Indigenous rights, a shortcut assessment, a missing consulta]. Within your responsibility, we ask you to [oppose or condition the permit / require a full EIA and consulta / raise this with the authorities]. [If true:] [#] residents and [#] organisations share this concern, and the RCA carries real legal risk. We welcome a meeting and can share our full evidence.

8G. Letter to a Buyer / Investor / Insurer

To: [the proponent's customer / financier / insurer] **Subject:** [Project] — legal and reputational risk

We write regarding your [purchasing / financing / insurance] relationship with [company] in connection with [project]. The project [one-line stake — e.g. "rests on a legally vulnerable permit granted without the Indigenous consultation the law requires, and threatens a community's water"], and our documented concerns include [the assessment defects, the missing consulta, the pending court case]. We ask you to weigh the legal, reputational, and financial risk, and whether your own [environmental, social, and human-rights commitments] are consistent with supporting it. We are glad to share our evidence.

8H. Email to a Reporter (Regional, National, or International)

To: [journalist] **Subject:** Story tip: [specific finding] — [the place / the water]

I follow your coverage of [beat]. We have something your readers should know, with a clear news hook: [documents] show [quantified finding — e.g. "a mine was permitted on a shortcut assessment that never counted the water it will take from an Indigenous community never consulted, with works due [date]"]. It is specific, verified, and it echoes Patagonia Sin Represas. I can share the full file and — where the community wishes to speak — connect you with affected people and a scientist. Could we talk this week?

Using the Templates Well

Send important communications so that receipt is provable, and log every one in your timeline — above all the citizen-participation window and the short appeal, court, and protección deadlines. Keep them factual, specific, and grounded in the law and the evidence; attach your documentation and technical reports; and route them, where you can, through or with the affected Indigenous community (following its lead), your environmental-law NGO or counsel, and your national and international allies. The reply — or the silence — becomes part of your record, and in Chile that record feeds the levers that matter most: citizen participation, consulta, the environmental courts, the SMA, the protección, and the public.

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

Not everyone can run a long campaign. With a few hours a week you can still do real damage to a bad project. In rough order of impact for the effort:

1. Check the assessment route and the consulta — first. Establish whether the project entered as a DIA when it needed a full EIA, and whether an Indigenous community is affected and was consulted. A wrong DIA or a missing consulta is among the strongest, cheapest grounds there is.

2. File substantive citizen observations. In an EIA, one evidenced observation (8A) puts your case on the record, forces an answer, and — if ignored — becomes a ground of appeal to the Committee of Ministers. But the window is short, so act now.

3. Get the documents. The study and participation record are on the e-SEIA; the rest comes under the transparency law (8B/8D). The gap between the study and the law is usually the case.

4. If it's operating and breaching, complain to the SMA. A denuncia (8C) can trigger an inspection, sanctions, and — with the court's authorisation — a halt. It is cheap and can bite fast.

5. Line up the environmental court and a recurso de protección. The moment an RCA is granted or a right is threatened, an environmental-law NGO or counsel can advise on a court challenge or a fast protección (8D) — but the deadlines are short.

6. Support the community's consulta. Where Indigenous peoples are affected, the ILO 169 consultation right — applied directly by the courts — is a powerful lever, led by the community.

7. Tell the story. A river, a glacier, or a community's water is a powerful story; one accurate tip (8H) can reach ministers and buyers a submission never will.

Do only the first three and you will have identified your strongest legal ground, put your case on the record while it counts, and pried loose the documents that reveal the defect — the exact foundation a bigger fight is built on. Then come back and read the rest. Even the shortest version has a spine: check the assessment route and consulta, file the observations, get the documents. Everything else in this guide amplifies those three moves. A community that does only them has already done more than most projects' opponents ever manage — and has often done enough to force a fuller assessment, expose the missing consulta, and put the evaluation commission on notice that this permit will be appealed, litigated, and fought.

WHEN THE SYSTEM IS TILTED

Chile's system is tilted in specific ways you must understand, so you neither waste effort nor miss the levers that still work.

Where the Tilt Shows

The tilt runs through an assessment system that **approves the large majority of projects** it evaluates, and through the **political** nature of the permit and the Committee of Ministers — HidroAysén, remember, was approved eleven-to-one and lost in the Supreme Court before it was finally cancelled by a change of political will. **Mining** — copper, and now the lithium of the northern salt flats — is central to the economy and pushed hard, often on Indigenous territory. Chile's **"sacrifice zones,"** such as Quintero-Puchuncaví, show that the system has tolerated concentrated pollution for decades. In these industrial enclaves — clusters of power stations, smelters, and refineries around communities that never chose them — episodes of acute poisoning have recurred for years while the permits stayed in place, a standing reminder that the assessment system's approval of a project is not the same as protection of the people who live beside it, and that vigilance must continue long after an RCA is granted. **Consulta indígena is frequently thin, late, or treated as a formality.** And the pressure to accelerate investment and permitting is constant. Chile — which, with Costa Rica, championed the Escazú Agreement but only ratified it in 2022 after years of delay — has the treaty's protections on paper, but their real weight for communities and defenders is still being tested against that pressure to build. Where this tilt bites, the formal process gives less than it should — but real levers still reach past it.

What Still Works — And Some Is Distinctive

The decisive point is that even where the system tilts, real and distinctive levers reach past it.

The environmental courts cannot be waved away. A deficient study, a skipped consulta, or an unlawful process is an illegality the specialised courts can **annul**, whatever the evaluation commission approved.

Consulta indígena is self-executing. The courts apply ILO 169 directly and have overturned permits granted without genuine consultation — a right that belongs to the community whatever the government wants.

The SMA can halt a project. An operating project that breaches its permit can be sanctioned and stopped, with the court's authorisation, regardless of who backs it. The Pascua Lama case showed a company with every permit brought to a halt because it would not keep to the conditions attached to them.

The recurso de protección is fast. The constitutional right to a clean environment reaches the Supreme Court quickly, past the slow administrative machinery.

Mobilisation and international attention endure. The Patagonia Sin Represas tradition — nationwide and global — is a force no permit can dissolve, and it works on ministers who must answer for their decisions.

The Honest Frame

So the honest frame for Chile is real but demanding. The environmental courts, consulta indígena, the SMA, the recurso de protección, the citizen participation and Committee appeal, and a deep mobilisation tradition give a community genuine — in places distinctive — power, as HidroAysén proved. But the assessment approves most projects, the permit is political, mining dominates, sacrifice zones endure, and consultation is often thin. So diagnose the tilt honestly: lean on the courts, the consulta, the SMA, and the mobilisation, not on a friendly evaluation commission; document every defect and every gap in consultation; protect your people and get legal advice; treat a win as something to be defended, not banked; and think in terms of delay, conditions, exposure, and a proponent worn down as much as an outright, permanent stop. Against a clean, politically backed project, that is often what winning looks like — and it is real.

WHEN IT'S ACTUAL CORRUPTION — AND WHO IS CAPTURED

Sometimes a project advances not despite the evidence but because someone is being improperly favoured, pressured, or paid. Undue influence changes your strategy: you stop trying to persuade a captured decision-maker and start exposing and going around them.

How to Tell

Look for the signatures of capture. An **RCA granted against the evidence**, over strong observations and Indigenous opposition, without genuinely answering them, suggests more than error. A project **steered into a DIA to dodge scrutiny**; a **consulta staged** as a formality; **undisclosed interests or revolving-door ties** between the proponent and the deciders; **conditions never enforced** by the SMA; and **decisions timed to avoid attention** all point the same way. And **pressure or threats against the campaign's or the community's leaders** are themselves a signature of something wrong. One anomaly may be error; a pattern is capture. Corruption tends to leave its fingerprints in the sequence of events — lay your timeline beside the official one and watch for approvals that cluster around a meeting, an appointment, or a favour.

Who Can Be Captured — and Who Is Harder

Be clear-eyed about where undue influence reaches. An **evaluation commission, a regional official, or a staged consulta** can be pressured or captured. But the Chilean system has bodies harder to reach that a captured local arrangement cannot easily control: the **Tribunales Ambientales and the Supreme Court**; **consulta indígena**, which the courts enforce directly; the **SMA** and the **Contraloría**; the **INDH** and the Escazú framework; and the national and international press. Undue influence thrives on darkness and on staying local; your task is to lift the matter out of the captured node and into the light and the higher, cleaner fora.

What to Do

Do not confront and tip off the captured decision-maker. Instead, **document the anomaly precisely** — the dates, the interests, the ignored observations, the staged consulta, the missing enforcement — and refer it, with evidence, to the bodies above (8E): the Contraloría, the environmental court, the INDH, and the press. Pair the referral with the Committee appeal, the court challenge, the SMA complaint, and the consulta claim, so the wrongdoing and the harm are exposed together. Exposure has its own momentum: a Contraloría finding or a court's attention creates a record other bodies must reckon with, and a consulta shown to be staged collapses the process the permit stood on. And protect yourself above all — get legal advice, coordinate with your NGO and the community, keep the work collective and documented, and never carry it alone.

INTEGRATION & TIMELINE

The five steps win when they run together. Here is how they fit across the life of a fight.

Early (Weeks 0-8): Identify, Connect, and Document

Pin down the project, the permit, and the stage (Step 1), and, where Indigenous peoples are affected, reach out

respectfully to understand the community's position and its right to consulta, following its lead (Step 3). Begin the file — get the study and participation record from the e-SEIA, and request documents under the transparency law (Step 2 and What to Gather). And move fast on what will not wait: **file citizen observations**, and **challenge a wrong DIA or a missing consulta**. Line up an environmental-law NGO or counsel now, before the short deadlines. This early phase is cheap, and it sets up everything else.

Middle (Months 2-24): Escalate on Every Front

Grow the movement and coalition (Step 3). Commission the technical counter-evidence and turn it into arguments for each audience (Turning Evidence). Escalate legally as the facts warrant — an appeal to the Committee, a claim in the environmental court, a recurso de protección, an SMA complaint, and, led by the community, a consulta challenge (Step 4). Refer any capture to the Contraloría and INDH. Press the proponent's buyers and funders (8G). Build the media drumbeat from local to national to international (Step 5). Each front feeds the others: a court case is a headline, a headline is pressure, pressure moves a minister or a buyer, and a disclosed document strengthens the case. Do the cheap, time-sensitive things first, because a missed participation window or a lapsed deadline cannot be recovered. And sequence the legal moves with your NGO and the community so they land when they bite hardest — the observations filed on the fullest evidence, the Committee appeal built on the unanswered ones, the environmental-court claim and the protección timed to the decision, the consulta challenge led by the community when its case is strongest — because a well-timed challenge can do more to stop a project than a stronger argument filed too late.

Later (Months 6-60+): Sustain, Win the Line, and Redefine the Win

Sustain the movement against burnout; protect your people; keep the record and the coverage alive. Pursue the durable prizes — an **annulled RCA**, a **reassessment with real consulta**, an **SMA halt, conditions**, a **cancellation**. And judge success honestly. Sometimes it is an outright, permanent stop — a project cancelled, rivers saved, as HidroAysén was. More often, in a fight against a politically backed project, it is a project **delayed for years, shrunk, conditioned, sent back for reassessment, or so exposed and legally besieged that the proponent walks away**. That is not a lesser victory. It is what winning usually looks like, and it is worth every effort it takes. And keep sight of the compounding return: every permit annulled, every consulta enforced, every project sent back for a real assessment builds the body of precedent and example the next community draws on. Patagonia Sin Represas did not only save the Baker and the Pascua; it showed a country that a government-approved megaproject could be beaten, and every campaign since has stood a little taller for it.

The Shape of a Campaign

WEEKS 0-8	Identify Connect with the community Document File observations Challenge DIA/consulta Get counsel
MONTHS 2-24	Grow the movement Arguments Committee appeal + environmental court + protección + SMA Media
MONTHS 6-60+	Sustain Protect people Win the annulment / reassessment / conditions / cancellation Redefine the win

FINAL ASSESSMENT

Chile gives communities a genuinely powerful — and, in places, distinctive — set of tools, and the honest measure of this guide is how squarely it faces both their strength and their limits.

The strengths are real and distinctive. A community can file **citizen observations** the authority must answer, and appeal a permit to the **Committee of Ministers** — the very route that cancelled HidroAysén. It can take a case to one of three **specialised environmental courts** built to annul an unlawful permit, and can trigger the **SMA** to halt a project that breaks its conditions. It can invoke the fast **recurso de protección** and the constitutional right to a clean environment before the **Supreme Court**. And, where Indigenous peoples are affected, it can rely on **consulta indígena** under ILO 169, which Chile's courts apply directly and have used to overturn permits — led by the community. Behind all of it stands a **deep mobilisation tradition**, national and international, that once cancelled a government-approved megaproject.

The limits are just as real. The assessment approves most projects; the permit and the Committee are political; mining dominates the economy and the north; the sacrifice zones endure; and consultation is too often thin. No guide should pretend otherwise. HidroAysén took more than seven years and survived an approval and a Supreme Court loss before it fell; that is the condition of this fight, not its exception.

So the realistic promise is this: **file substantive observations, engage and support affected Indigenous communities, document every defect and gap in consultation, use the Committee appeal, the environmental courts, the SMA, and the protección, reach the market, and mobilise the public — and run all of it together,**

protecting your people, getting early legal advice, and following the community's lead. Do that, and even against a politically backed project you can force delay, conditions, exposure, a reassessment, an annulled permit, and a proponent worn down — and sometimes an outright stop. Do it as Patagonia Sin Represas did, with technical evidence, every legal lever, and a movement that reached from Cochrane to the world, and you can win a victory that protects not only your own river or water but sets a precedent others will stand on.

A last word on endurance. These fights are won in years, not weeks, and the proponent is counting on your exhaustion. Its advantage is money and patience; yours is legitimacy, the specialised environmental courts, the consultation right, and the plain fact that you are defending your home and your water while it is merely pursuing a return. Play to that. Keep the file, keep the movement, keep the record and the coverage alive, protect your people, and treat every delay, every annulled permit, every SMA sanction, every disclosed document, and every headline as a brick in a wall that grows too high and too costly for the project to climb.

The tools are here, and Chile's history proves they work: two of the wildest rivers on Earth still run free through Patagonia, because a town, a country, and a world organised, endured, and used every lever the system offered. What decides the outcome is method, endurance, and courage — and those you supply. Begin today, begin cheaply, and build from there. Communities before you have stopped what looked unstoppable — rivers saved from five dams, a mine halted for breaking its own conditions, a permit annulled for a consultation never held, a project a government finally let go. The tools are here and, used together and early, they work; what has ever been missing in the fights that were lost was not the law but the organisation and the endurance to use it. So can yours.